

## 23VECV05011 23VECV05011

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-29

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Tentative Ruling

Cassis v. Cassis, Case no. 23VECV05011

Hearing date July 29, 2026

Plaintiff

Cassis' Motion for an OSC Re: Contempt

Plaintiff

Salime Cassis sued defendant Soraya Cassis for fraud on November 9, 2023, alleging defendant fraudulently filed a deed claiming to transfer title to plaintiff's real property.

The

parties entered into a settlement agreement on 12/17/25 whereby the subject property would be sold and the proceeds divided between the parties. The case was not dismissed. On 1/28/26 plaintiff applied ex parte for a temporary restraining order preventing defendant from interfering with the sale of the subject property by independently advertising the property for sale on real estate websites and harassing the parties' third-party real estate broker.

On

2/6/26 plaintiff filed this motion for an Order to Show Cause re: contempt, arguing defendant continues to willfully violate the 1/28/26 order. The court continued the hearing for plaintiff to personally serve the supporting affidavit on defendant. See 4/30/26 Min. Order.

Defendant

opposes the motion for an OSC re: contempt, arguing the court lacks jurisdiction. Defendant asserts the underlying settlement agreement was an unconditional settlement agreement not subject to Code Civ. Proc. §664.6. Defendant argues the court should have dismissed this action within 45 days of the settlement being reached.

The

order stated “[i]f no request for dismissal of the entire action is filed within 45 days... the court will deem the settlement to be ‘conditional.’ If there are no appearances at the OSC hearing, no dismissal filed, nor good cause shown why this action should not be dismissed by the time of the OSC, the court on its own motion shall dismiss this action without prejudice, retaining jurisdiction to enforce the settlement, pursuant to the Notice of Settlement and Code of Civil Procedure, section 664.6.” See 1/13/26 Order.

At

the OSC re: dismissal, the court solicited the parties’ input; both were represented by counsel. See 3/13/26 Min. Order. The parties agreed dismissal was not appropriate and requested that the court retain jurisdiction and keep this matter on the docket. Id. The court has jurisdiction until the case is dismissed. See Code Civ. Proc. §410.50; In re Marriage of Rassier (2002) 96 Cal.App.4th 1431. As this matter has not been dismissed, the court retains jurisdiction.

The

elements of proof for indirect contempt are: (1) a valid court order; (2) actual knowledge of the order; (3) ability to comply with the order; and (4) willful disobedience. Koshak v. Malek (2011) 200 Cal. App. 4th 1540, 1549-1550. “In order to institute a proceeding for indirect contempt under the Code of Civil Procedure, an affidavit must be presented to the court setting forth the facts constituting the contempt. ... ‘It has long been the rule that the filing of a sufficient affidavit is a jurisdictional prerequisite to a contempt proceeding.’ ... Without an initiating affidavit, a contempt order is void. ... ‘After notice to the opposing party’s lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth.’ ... The issuance of the order to show cause commences a ‘separate action’ on the contempt charges. ... The accused is entitled to a full and fair hearing that satisfies due process. ... .” In re M.R.

(2013) 220 Cal.App.4th 49, 57-58.

Per

the declaration of counsel Levine: (1) the court issued a valid order on 1/28/26 (Decl. Levine, para. 8, exh. B); (2) defendant had actual knowledge of the order; (3) defendant had the ability to comply with the order; and (4) defendant willfully failed to comply with the order. Id. at paras. 5-10.

Plaintiff has complied with the personal service requirements set forth in M.R., supra. See 5/27/26 Proof of Serv. This is sufficient to set an OSC re: contempt.

GRANTED;

the court to set a hearing date.